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Case Number: 24STCV17965 Hearing Date: August 26, 2026 Dept: 509

Cuauhtemoc Robles Pino, et al. v. Hugo E. Catalan, et al.

(1) MOTION FOR RELIEF TO SET ASIDE OFFER TO COMPROMISE

(2) MOTION TO ENFORCE 998 OFFER

MOVING PARTY: (1) Defendant Hugo E. Catalan; (2) Plaintiffs Cuauhtemoc Robles Pino, Bismark Robles Saustegui, and Miguel Angel Robles Saustegui

RESPONDING PARTY(S): (1) Plaintiffs Cuauhtemoc Robles Pino, Bismark Robles Saustegui, and Miguel Angel Robles Saustegui; and (2) Defendant Hugo E. Catalan

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a habitability action. Plaintiffs Cuauhtemoc Robles Pino, Bismark Robles Saustegui, and Miguel Angel Robles Saustegui (Plaintiffs) alleges defendants Hugo E. Catalan and Mary M. Catalan failed to adequately maintain the property. Mary M. Catalan was dismissed on October 24, 2024.

On July 24, 2026, Hugo E. Catalan (Defendant) filed a motion for relief to set aside offer to compromise.

On July 27, 2026, Plaintiffs filed a motion to enforce the settlement.

Both parties oppose the other's motion.

TENTATIVE RULING

Defendant's Motion to Set Aside the Offer to Compromise is GRANTED.

Plaintiffs' Motion to Enforce the Settlement is DENIED.

A new Case Management Conference is set for September 23, 2026 at 8:30 a.m.

DISCUSSION

Motion to Set Aside Offer to Compromise

I. Legal Standard

Code of Civil Procedure, section 473(b) “provides for both discretionary and mandatory relief. [Citation.]” (*Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 302.) In contrast to the mandatory portion of Code of Civil Procedure section 473, applying to defaults and dismissals, discretionary relief applies to any other proceeding, such as failures to meet procedural deadlines. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1419.)

For discretionary relief, “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”² (Code Civ. Proc., § 473(b).)

A moving party need only establish “mistake, inadvertence, surprise, or excusable neglect” by a preponderance of the evidence. (*Luz v. Lopes* (1960) 55 Cal.2d 54, 62.) Excusable neglect exists where counsel or the party acted as a reasonably prudent person would under the circumstances. (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) Attorney negligence is not a basis for discretionary relief under Code of Civil Procedure section 473. (*Pazderka v. Caballeros Dimas Alang, Inc.* (1998) 62 Cal.App.4th 658, 672; *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 682.)

II. Analysis

Parties who have made an erroneous Section 998 offer may obtain relief pursuant to the discretionary relief provision of Code of Civil Procedure, section 473(b). (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 252, 257-58.)

A party who seeks relief under section 473 on the basis of mistake or inadvertence of counsel must demonstrate that such mistake, inadvertence, or general neglect was excusable because the negligence of the attorney is imputed to his client and may not be offered by the latter as a basis for relief.” In determining whether the attorney’s mistake or inadvertence was excusable, “the court inquires whether ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” In other words, the discretionary relief provision of section 473 only permits relief from attorney error “fairly imputable to the client, i.e., mistakes anyone could have made.” “Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.”

...

Where the mistake is excusable and the party seeking relief has been diligent, courts have often granted relief pursuant to the discretionary relief provision of section 473 if no prejudice to the opposing party will ensue. In such cases, the law “looks with [particular] disfavor on a party who, regardless of the merits of his cause, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.

(Zamora v. Clayborn Contracting Group, Inc., supra, 28 Cal.4th at p. 258, internal citations omitted.)

Here, the Court finds discretionary relief is warranted. Pamela Mozer, counsel for Defendant declares, “it was decided that it was best to make an Offer to Compromise, (the “Offer”), which would pay the Tenants to dismiss the case and leave the Property.” (Mozer Decl. ¶14.) “So, I prepared a 998 Offer. After my initial writing, I reviewed it and realized that I had failed to include a term that provided that the Tenants must vacate the Property. So, I amended the document. I saved it (or so I thought), turned it into a pdf, and immediately sent it off to counsel. It was not until I happened to read it a few days later that I saw that the wrong version of the document had been sent and that the edited version did not go to Plaintiff’s counsel.” (Mozer Decl. ¶¶ 15-19.) “In a panic, I called counsel and told him that I had made a mistake.” ((Mozer Decl. ¶22.) “I notified [opposing counsel] the very day after they signed the Offer.” (Mozer Decl. ¶23.)

The Mozer Declaration does not indicate attorney malpractice or other inexcusable mistakes but rather a clerical error. This is the sort of error Section 473(b) was created to relieve. Further, Plaintiffs suffer no prejudice from setting aside this 998 Offer. Plaintiffs may resume fair settlement negotiations with the knowledge that, if ultimately successful at trial, their attorney’s fees for this action, including the time spent in this instant motion, are recoverable. (See Compl. ¶117; see also Civ. Code §1942.4)

Additionally, “[a]n attorney does not, without specific authorization, possess the power or authority to bind his client to a compromise settlement of pending litigation. Where, as here, an attorney makes a clerical mistake that results in a settlement on terms clearly not authorized by his client, the public policy favoring settlements has no force. Rather, the client, in the interests of justice, should be “given an opportunity to have” his “respective rights ... tried and adjudicated.” (Zamora v. Clayborn Contracting Group, Inc., supra, 28 Cal.4th at p. 260, internal citations omitted.) At the very least, from the Mozer Declaration, it appears Plaintiffs and Defendant did not reach an agreement that Defendant specifically authorized, making such enforcement arguably unconscionable. (Id. at p. 260–261.) Despite Plaintiffs assertion that Defendant is attempting to “unilaterally modify the agreement,” the evidence supports that this 998 Offer was simply a result of attorney error.

Consistent with these settled policies, the Court finds discretionary relief is warranted under the totality of the circumstances. [FN 1]

Accordingly, Defendant’s Motion to Set Aside the 998 Offer is GRANTED.

Motion to Enforce Settlement

As the concurrent motion to set aside the 998 Offer was granted, there is no valid settlement agreement between the parties.

Accordingly, Plaintiffs’ Motion to Enforce the Settlement is DENIED.

IT IS SO ORDERED.

Dated: August 26, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - One could reasonably contend that mandatory relief is also warranted in this matter, due to attorney error. Be that as it may, since discretionary relief is appropriate and granted, there is no need to address the mandatory relief provisions of Section 473(b).

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.